SHERIFFDOM OF LOTHIAN AND BORDERS AT JEDBURGH

[2025] FAI 11

JED-B110-24

DETERMINATION

BY

SHERIFF PETER PATERSON

UNDER THE INQUIRIES INTO FATAL ACCIDENTS AND SUDDEN DEATHS ETC (SCOTLAND) ACT 2016

into the death of

COLIN ELLIOT

JEDBURGH, 5 February 2025

Determination

The Sheriff having considered the evidence and submissions of the parties; determines that in terms of Section 26 of the Inquires into Fatal Accidents and Sudden Deaths etc (Scotland) Act 2016 ("the Act") as follows:

1. In terms of Section 26(2)(a) of the Act, Colin Elliot was pronounced deceased at 04:10 hours on 19 January 2023 on the A1, 1 mile north of the junction for Eyemouth, Berwickshire.

2. In terms of Section 26(2)(b) of the Act the death of Colin Elliot occurred due to a road traffic collision on the A1, 1 mile north of the junction for Eyemouth, Berwickshire at approximately 03:20 hours on 19 January 2023.

3. In terms of Section 26(2)(c) of the Act the cause of death was head and chest injuries.

4. In terms of Section 26(2)(d) of the Act, the cause of the accident resulting in the death of Mr Elliot was his lack of attention resulting in the vehicle being driven by him colliding with a stationary vehicle.

5. In terms of Section 26(2)(e) of the Act there are no reasonable precautions which could reasonably have been taken that would have prevented the accident.

6. In terms of Section 26(2)(f) of the Act there were no defects in the system of working.

7. In terms of Section 26(2)(g) of the Act the only other relevant fact which the court feels compelled to refer to is the toxicology findings which confirms the level of amphetamine detected in the deceased's system was in excess of the 0.25 mg/L blood specified in section 5A of the Road Traffic Act 1988.

Recommendations

1. In terms of Section 26(1)(b) of the Act the court has no recommendation to make.

Note

Introduction

[1] The inquiry into the death of Colin Elliot was held under Inquires into Fatal Accidents and Sudden Deaths Etc. (Scotland) Act 2016.

[2] The date of death of the deceased was 19 January 2023.

[3] The preliminary hearing took place on 10 December 2024 and the inquiry on 29 January 2025.

[4] The only representation at the inquiry was from Miss Stewart procurator fiscal depute.

[5] No evidence was led, there being no challenge to the Crown's notice to admit.

The legal framework

[6] In terms of section 2(3) of the Act, the deceased having died in the course of his employment the inquiry is a mandatory one. The purpose of an inquiry is to establish the circumstances of the death and to consider what steps, if any, may be taken to prevent other deaths in similar circumstances.

[7] Section 26 of the Act requires the sheriff to make a determination which in terms of section 26(2), is to set out factors relevant to the circumstances of the death, in so far as they have been established to his satisfaction. These are (a) when and where the death occurred; (b) when and where any accident resulting in the death occurred; (c) the cause or causes of the death; (d) the cause or causes of any accident resulting in the death; (e) any precautions which could reasonably have been taken and if they had been taken might realistically have resulted in the death being avoided; (f) any defect in any system of working which contributed to the death or to the accident; and (g) any other facts which are relevant to the circumstances of the death. In terms of section 26(1)(b) and 26(4), the inquiry is to make such recommendations (if any) as the sheriff considers appropriate as to (a) the taking of reasonable precautions, (b) the making of

improvements to any system of working, (c) the introduction of a system of working, and (d) the taking of any other steps, which might realistically prevent other deaths in similar circumstances. The procurator fiscal depute represents the public interest. An inquiry is an inquisitorial process and the manner in which evidence is presented is not restricted. The determination must be based on the evidence presented at the inquiry. It is not the purpose of an inquiry to establish criminal or civil liability

Summary

[8] The circumstances of Mr Elliot's death are set out in the notice to admit, Form 412a, which has been lodged by the Crown.

[9] The deceased was born on 24 June 1972.

[10] At the time of his death the deceased resided with his wife, Dawn Elliot, in Kilmarnock. The deceased was the father of two children from a previous relationship and a step-father to the three children of Dawn Elliot.

[11] The deceased had been diagnosed with thyrotoxicosis. He was prescribed Carbimazole 5mg, two tablets to be taken daily, and Omeprazole 20mg, one tablet to be taken daily. Thyrotoxicosis affected the deceased's eyesight and he wore glasses.

[12] The deceased was employed as a heavy goods vehicle ("HGV") driver and held a category C1 licence since 1990.

[13] At the time of his death the deceased was employed as a HGV driver by ATV Dedicated Ltd.

[14] On 18 January 2023 the deceased commenced work at ATV Dedicated Ltd at approximately 1600 hours. He was tasked with carrying out deliveries using a 7.5 tonne white Mercedes Atego box van with registration mark N300 ATV.

[15] At about 0210 hours on 19 January 2023 the deceased made a delivery near to Waverley Station in Edinburgh and thereafter travelled to the A1 heading Eastbound towards Berwick-upon-Tweed.

[16] On the A1 about 1 mile north of the junction with the A1107 road to Eyemouth temporary traffic lights were positioned while roadworks took place.

[17] On 19 January 2023 Mr Jacek Lyskawa was employed as a HGV driver for ADR, an agency supplying HGV drivers to businesses. He was driving an Iveco Stralis HGV and trailer with registration mark YL17 YCO, owned by Romac Logistics.

[18] At about 0320 hours on the same date Mr Lyskawa was stopped at the temporary traffic lights on the A1. He was travelling east and therefore in the same lane as the deceased. Mr Lyskawa noted the lights of a truck in the distance behind him. The traffic lights changed to green but before Mr Lyskawa could move his vehicle forward there was a loud sound of a collision and his vehicle was pushed forward. Looking in his mirror Mr Lyskawa noted the lights of another HGV at his rear offside.

[19] Mr Lyskawa alighted from his vehicle and went to the rear of his vehicle. He noted another HGV had collided with the rear of his own vehicle. Mr Lyskawa was unable to locate the driver in the cab of the other vehicle nor could he locate his own mobile phone. Mr Lyskawa sought assistance from the nearby road workers, who

contacted emergency services. Neither Mr Lyskawa nor the road workers were able to locate anyone in the deceased's vehicle.

[20] The Scottish Ambulance Service arrived at the locus at 0346 hours and were unable to access the deceased but were able to reach his hand. No pulse was detected. Scottish Fire and Rescue Service attended the locus at 0358 hours and assisted by opening the cab to allow paramedics to attach a monitor to the deceased which indicated the deceased's condition was not compatible with life.

[21] At 0410 hours on 19 January 2023 paramedic Andrew Young pronounced life extinct while the deceased was still within the cab of vehicle N300 ATV.

[22] Officers from the Police Service of Scotland attended the locus and identified the deceased from his driving licence, drivers card and work identification card, all of which had been located in the deceased's rear trouser pocket.

[23] At the time of the collision the road conditions were good.

[24] Analysis of the deceased's vehicle's tachograph indicates that his vehicles slowed slightly immediately prior to impact, his speed at impact being 55.33 MPH. Further analysis of the deceased's vehicle tachograph show that he had sufficient weekly and daily rest.

[25] The road works at which Mr Lyskawa was stationary at, were clearly visible and in order.

[26] The deceased was conveyed to Peffermill Mortuary where identification was confirmed by his wife, Mrs Dawn Elliot, and close family friend Yvonne McIlroy.

Discussion and conclusions

[27] The inquiry was mandatory but the immediate cause the death was all too obvious, and was not survivable road accident. Sadly the inquiry has to record that the sole cause of the accident was the deceased driving.

[28] As to why the road accident occurred can only be a matter of speculation. The accident investigation report advances a number of possible reasons that might have contributed to the accident such as use of telephone, tiredness, or illness. To this must be added the possible effect of the amphetamine. However there is no evidence before the inquiry that would allow it to conclude that any of these factors did contribute to the accident.

[29] Accordingly the inquiry is unable to reach any definitive conclusion as to why the accident occurred.